

Court No. - 2

Case :- WRIT - C No. - 57221 of 2010

Petitioner :- M. Das Binani (Binani Dharmshala) And Another

Respondent :- State Of U.P. And Others

Petitioner Counsel :- O.P. Shukla

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioners as well as learned Standing Counsel appearing for the respondent no. 1 and Sri H.P. Dube, learned counsel appearing for the contesting respondents no. 2 and 3 and have perused the record. With consent of learned counsel for the parties, this writ petition is being disposed of finally at this stage without calling for a counter affidavit.

The grievance of the petitioner is that in response to the bill issued under the one time settlement, the petitioner has deposited the entire amount of Rs. 2,88,105/- on 12.5.2010 but the grievance raised by the petitioner with regard to the said bill has not been decided by the respondent authorities. He claims that in the said settlement, certain excess amount has been charged and the said amount is liable to be refunded to him.

Sri H.P. Dube, learned counsel appearing for the contesting respondents has pointed out that under Clause 7.10 of the U.P. Electricity Supply Code, 2005, in case the petitioner has any such grievance, he can approach the Consumer Grievance Redressal Forum.

Since the Electricity Code itself provides a forum for redressal of the grievances, we would not be inclined to entertain this petition on merits. Accordingly, this writ petition is disposed of with the direction that in case if the petitioners approach the Consumer Grievance Redressal Forum within a period of one month from today by way of filing a case along with certified copy of this order, the same shall be considered and decided by the said forum expeditiously on merits, without taking any objection with regard to delay.

With the aforesaid observation/direction, this writ petition is finally disposed of. No order as to costs.

Order Date :- 17.9.2010/AA